

BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.

GATOR FABRICATION TECHNOLOGY, LLC,

Complainant,

v.

FMC Docket No. -2026-03

FLADOR GLOBAL LOGISTICS

(a/k/a Flador Global Uluslararası Taşımacılık Loj. Dış Tic. Ltd. Şti.)

and

NTG AIR & OCEAN, LLC,

Respondents.

VERIFIED ANSWER OF RESPONDENT FLADOR GLOBAL

Respondent Flador Global Uluslararası Taşımacılık Loj. Dış Tic. Ltd. Şti. (“Flador”), by and through its undersigned authorised representative, Özgür Demirtaş, hereby submits this Answer to the Complaint filed by Complainant and responds to the numbered paragraphs thereof based upon its knowledge, documents, and belief:

PRELIMINARY STATEMENT

The Complaint is based on allegations that Respondents wrongfully withheld cargo, asserted an unlawful lien, used detention and storage charges to coerce payment of unrelated debts, and retaliated against Complainant after threats to file a complaint with the Federal Maritime Commission.

Those allegations are untrue.

Complainant failed to pay the matured customs charges in the amount of USD 22,745.69, which, under the parties’ agreement, were due and payable prior to release and delivery. Instead of making that payment, Complainant relied on the fact that payments relating to the third shipment had been made. That circumstance, however, does not negate Complainant’s outstanding indebtedness in the amount of USD 22,745.69. Despite that default, Complainant demanded release of the third shipment without paying the outstanding amount and/or without providing adequate security.

The charges at issue arose from the same commercial relationship and were secured by the contractual lien provisions of the governing transport documents.

Pursuant to Clause 17 of the attached Switch BL (Switch Bill of Lading) Flador conditionally withheld delivery pending payment or provision of sufficient security, in the exercise of its contractual lien and retention rights. The charges and expenses incurred were the direct and foreseeable result of Complainant's default. The retaliation claim is legally and factually unsupported because Respondents' actions arose from payment default and the absence of adequate security, not from any protected activity.

At its core, this matter concerns a commercial collection and breach of contract dispute arising from unpaid invoices. It does not constitute a violation of the Shipping Act and falls outside the Commission's subject matter jurisdiction.

I. INTRODUCTION

Response to Paragraph 1:

Respondent Flador Global Uluslararası Taşımacılık Loj. Dış Tic. Ltd. Şti. ("Flador"), by and through its undersigned authorised representative, hereby submits this Verified Answer to the Complaint. The Complaint to which this Answer is submitted was served upon Respondent Flador on 17 February 2026. Respondent denies all allegations that it engaged in any unreasonable, unjust, or unlawful practice. Respondent further denies that any cargo was wrongfully withheld, that any maritime or contractual lien was asserted unlawfully or improperly, that any cargo was coercively retained in order to compel payment of disputed or unrelated charges, or that any unlawful retaliation occurred. Respondent likewise denies any allegation that it violated 46 U.S.C. §§ 41102(c) or (d), or 41104(a)(10) or (14).

II. PARTIES

Response to Paragraph 2:

Respondent admits the allegation that Complainant is a limited liability company organized under the laws of Florida. Respondent lacks sufficient information to admit or deny the allegations regarding Complainant's address and contact details and therefore denies them. Respondent admits that Complainant was the shipper within the meaning of 46 U.S.C. § 40102(23).

Response to Paragraph 3:

Flador Global Logistics operates under the corporate name Flador Global Uluslararası Taşımacılık Lojistik Dış Ticaret Limited Şirketi.

With respect to the contact information stated in the Complaint, Flador's contact email addresses are corrected as follows:

- mehmet@fladorglobal.com

- info@fladorglobal.com

Flador expressly denies the allegation that it acted as an ocean transportation intermediary or as a non-vessel-operating common carrier within the meaning alleged in the Complaint.

Response to Paragraph 4:

Flador admits that it does not hold an OTI license issued by the Federal Maritime Commission. Flador further admits that it does not appear in the Commission's public OTI records as a licensed or registered NVOCC or ocean freight forwarder.

Flador denies, however, any allegation or implication that it provided OTI services in the United States or held itself out as an NVOCC or ocean freight forwarder. To the extent any U.S. OTI services were performed, such services were performed by NTG, a licensed OTI. Accordingly, the Complaint may not impose liability upon Flador based on OTI status.

Response to Paragraph 5:

Flador admits only that NTG was engaged to perform certain local operational matters in the United States in connection with the subject shipments. Flador lacks sufficient knowledge or information to form a belief as to the truth of the allegations concerning NTG's address, contact details, and licensing status and, accordingly, is not in a position to admit or deny those allegations. Flador's engagement of NTG for the performance of local services does not give rise to a joint venture, concerted action, or joint and several liability, as alleged by Complainant.

Response to Paragraph 6:

Flador denies the allegation that it acted jointly with NTG and is jointly and severally liable for the damages alleged by Complainant.

Flador was not directly at fault for the alleged damage. The reported damage arose when cargo handled by a third party tipped over during loading operations at the CFS facility.

Flador does not object to compensation being paid for damage reported to have occurred during inland handling. To facilitate resolution of that issue, Flador initiated a claim under its Freight Forwarder Liability policy.

In addition, before the amount of loss had been determined and before the insurance process had been completed, Flador showed good faith by expressing a willingness to resolve the matter and compensate Complainant.

At the same time, because Complainant breached its contractual obligations by failing to pay its debt, Complainant was notified that lien rights would have to be exercised pursuant to Clause 17 of the Switch BL and that Complainant would be responsible for the resulting charges. Those freight and storage charges were caused by Complainant's conduct, and Complainant is responsible for them.

To the extent Complainant alleges other damages, such damages have not been specifically identified, and Flador is therefore unable to respond substantively at this stage. Those allegations are denied.

In short, more than sufficient steps were taken to address the damage reported in the first shipment. Apart from that, the allegation that Complainant suffered damage caused by Flador is unfounded. Flador therefore denies any joint and several liability.

This matter is, in substance, a collection and contract dispute concerning unpaid invoices. Even if the Commission were to review the Complaint, the dispute is not one properly arising under the Shipping Act.

Response to Paragraph 7:

Flador denies the allegations in Paragraph 7 insofar as they allege, characterise, or imply that Flador is an entity subject to regulation by the Federal Maritime Commission. Flador did not act as an Ocean Transportation Intermediary (“OTI”), non vessel operating common carrier (“NVOCC”), or ocean freight forwarder, nor did it represent itself as such. Instead, Flador’s involvement was limited to an organisational role relating to the shipment. Accordingly, the Complaint does not plead facts sufficient to establish FMC jurisdiction over Flador. Flador therefore denies the allegations in Paragraph 7, except to the extent any allegation merely purports to quote or cite a statute or regulation, for which no response is required.

Response to Paragraph 8:

Flador admits only that the transactions at issue involved international commercial transportation to the United States and related handling, storage, and delivery of cargo, insofar as those allegations are merely descriptive. Flador denies all allegations and implications that such transactions constituted unlawful practices or violations of the Shipping Act.

Response to Paragraph 9:

Flador denies the allegation that it acted as an ocean transportation intermediary or as an agent of an ocean transportation intermediary. Flador does not hold an OTI license issued by the Commission and did not hold itself out as an NVOCC or ocean freight forwarder. To the extent any OTI functions in the United States were performed, they were performed by NTG, the licensed OTI.

Response to Paragraph 10:

Flador denies that Paragraph 10 establishes Commission jurisdiction over Flador. Flador responds to the subparagraphs as follows:

(a) Flador admits only that NTG was engaged to perform certain local services in the United States in connection with the subject shipments. Flador denies that this allegation, even if accepted, establishes Commission jurisdiction over Flador or any Shipping Act liability.

(b) Flador denies the allegation that it directed, controlled, or caused any act or practice constituting a violation of the Shipping Act.

(c) Flador denies the allegation that it caused or participated in any unreasonable practice in connection with the transportation, handling, storage, or delivery of cargo in U.S. foreign commerce, and further denies the legal conclusion that the Shipping Act applies to Flador on the facts alleged in the Complaint.

The alleged wrongful exercise of lien concerns, at most, a single disputed commercial transaction involving the third shipment. Accordingly, even accepting Complainant’s factual allegations arguendo, those allegations remain insufficient as a matter of law to establish any Shipping Act violation by Flador.

IV. FACTS

Response to Paragraph 15:

Flador admits that Complainant retained Flador to arrange transportation of profile bending machines purchased in Türkiye for shipment to the United States. The parties agreed that the goods would be transported on EXW terms. Under that agreement, Complainant was responsible, prior to release and delivery, for all charges, including import customs duties and all related expenses. Flador further admits that NTG was engaged in connection with customs clearance and domestic delivery activities in the United States for the second and third shipment.

Response to Paragraph 16:

Flador admits that three separate shipments were arranged under the parties' transportation arrangement.

Response to Paragraph 17:

Flador denies the allegation that the first shipment consisted of three pieces of equipment in container number HLXU5647244, that USD 8,000.00 in ocean freight was paid for that shipment, and that the shipment was delivered without incident.

The first shipment was partially transported in container number TRKU4487598 under Sterling Container Bill of Lading (Sea Waybill) No. SCLLIST500776 dated August 17, 2025 for the exhibit title 5.

The invoice value of the machine components carried in that shipment was USD 48,759.47.

As reflected in the attached balance statement, invoices, and payment records, Complainant paid USD 3,350 in freight charges to Flador on September 2, 2025 under Invoice No. 251 dated August 19, 2025 for the exhibit title 9.

In addition, customs charges in the amount of USD 10,017.73 were paid on September 15, 2025 under Invoice No. 352 dated September 10, 2025 for the exhibit title 9.

The allegation that the cargo subject to the first shipment was delivered without issue is false. A damage report was made in relation to certain machine components included in the first shipment.

This damage was reported to Respondent Flador by Atlantic. Complainant thereafter informed Flador that it would not accept delivery of the cargo. Notwithstanding that position, Complainant subsequently accepted delivery of the damaged cargo. The damage was thereafter formally notified and documented by Complainant Gator through Freightlead LCL's LLC Delivery (Work) Order dated 14 October 2025 and STG Logistics' Client Cargo Claim Form dated 16 October 2025 for the exhibit title 11.

As explained below, on November 4, 2025, Flador initiated the claims process under its Freight Forwarder Liability policy No. 129240119 in order to pursue payment of the reported loss.

Response to Paragraph 18:

It is not true that the second shipment consisted of a single piece of equipment carried in container number TRKU4487598, or that USD 3,100.00 in freight charges and USD 10,017.73 in customs charges were paid for that shipment.

The second shipment moved under Flador Seawaybill No. HLCUIZ1PH07616AA for the exhibit title 6. It was carried aboard the Hapag-Lloyd vessel Shekou 25315 in container number HLXU5647244. The cargo was delivered to Complainant undamaged on October 13, 2025.

With respect to that second shipment, Complainant paid USD 8,000.00 in freight charges on September 3, 2025 under Invoice No. 252 dated August 19, 2025 for the exhibit title 9.

However, Complainant failed to pay Invoice No. 429 dated September 30, 2025 in the amount of USD 22,745.69 for customs charges relating to the second shipment. Following the damage reported in the first shipment, Complainant advanced shifting and internally inconsistent justifications for nonpayment, including the assertion that the transportation had been on DDP terms and the contention that the alleged first-shipment damage entitled it to withhold payment of the second-shipment charges.

Response to Paragraph 19:

Respondent denies all allegations set forth in Paragraph 19 of the Complaint. Complainant's account is incomplete, inconsistent, and materially misleading.

As stated above, the alleged damage relates not to the second shipment but to the first shipment, and occurred during the intermediate inland transport and handling of that partial shipment. By contrast, the goods comprising the second shipment were delivered on October 13, 2025 in sound and complete condition. In such circumstances, Complainant had no valid or legal basis to refrain from paying the matured and overdue debt in the amount of USD 22,745.69 under Invoice No. 429 dated September 30, 2025 for the exhibit title 9.

In particular, given that no damage whatsoever occurred to the second shipment, there is no legally defensible basis for withholding that payment.

Additionally, on 6 October 2025, the Complainant's representative stated that it would not accept the cargo from the first shipment in its damaged condition and that it would pursue legal remedies. Notwithstanding that statement, on 7 October 2025, Gator subsequently informed Respondent's representative that it would accept the cargo in its damaged condition, and it thereafter took delivery of the cargo. Thereafter, on 14 and 16 October 2025, the relevant Freightlead and STG warehouse forms were completed and the damage was formally reported. In addition, on 5 November 2025, the Complainant Gator was informed that Respondent had opened Claim File No. 2611974 with Doğa Sigorta under FFL Policy No. 129240119 and had taken the necessary steps to bring the damage process to a conclusion. Notwithstanding this, the Complainant failed to cooperate with the insurer's loss adjusters for a considerable period of time and, despite the numerous emails sent both by the adjusters and by Respondent, did not provide the supporting documents relating to the expenses it allegedly incurred in connection with the damage it claims to have suffered in the first shipment.

As is also evident from the documents attached hereto, because the Complainant failed to respond to the telephone calls and emails of Respondent and the insurer's loss adjusters, formal

notices had to be sent on 30 December 2025 and 15 January 2026 through the registered electronic address of the exporter, Mac Bending. As a result, on 17 January 2026, Tayfun Alptekin of Complainant Gator responded. In addition, the documents requested by the insurer's loss adjusters on 17 February 2026 still have not been provided

Complainant is conflating separate shipments, different events, and distinct legal issues. The alleged damage arose not from the second shipment, in respect of which the debt of USD 22,745.69 was left unpaid, but during the handling of the first shipment. Nevertheless, Complainant refrained from discharging its matured and legally payable obligations in relation to the second shipment and attempted to use the unresolved damage issue relating to the first shipment as a justification for nonpayment. In other words, Complainant is attempting to portray what is, in essence, a commercial payment and set-off dispute as though it were a non-existent violation of the Shipping Act.

Moreover, instead of applying its payment to the customs duty invoice for the delivered second shipment, namely Invoice No. 429 dated September 30, 2025 in the amount of USD 22,745.69, Complainant chose to direct those payments to freight receivables relating to the undelivered third shipment. Specifically, on October 2, 2025, Complainant made a payment of USD 7,600.00 by referencing the invoice for the third shipment, eleven days before delivery of that shipment was requested. Likewise, on November 3, 2025, Complainant made a payment of USD 11,541.69 by referencing Invoice No. 541 dated October 23, 2025. Accordingly, the circumstances giving rise to the exercise of lien rights in the present dispute were created by Complainant's own actions and choices.

In conclusion, there is no legal or factual basis whatsoever for the allegation that Respondent's conduct constituted any unreasonable, unjust, coercive, retaliatory, or otherwise unlawful practice. All actions taken by Respondent were lawful, justified, and proportionate in light of Complainant's failure to pay its matured debt, its inconsistent conduct, and its failure to comply with its payment obligations.

Response to Paragraph 20:

Flador admits that the third shipment consisted of a plate bending machine and that Complainant paid USD 7,600.00 on October 2, 2025 under Invoice No. 416 dated September 24, 2025 for ocean freight for the exhibit title 9. Flador states, however, that the customs and import charge items relating to the third shipment differ from the characterization set forth in the Complaint.

The Complainant's allegation that it paid USD 11,541.69 in customs and other charges for the third shipment is not entirely accurate. As is clear from Invoice No. 541 dated October 23, 2025 the customs charges for the third shipment amounted to USD 10,139.19. As shown by the attached invoices and payment balance records, the payment of USD 11,541.69 made on November 3, 2025 included not only the amount due in respect of the third shipment, but also a USD 972.00 payment toward Invoice No. 488 dated October 13, 2025 relating to the second shipment, as well as the amount due under Invoice No. 565 dated October 31, 2025 relating to the third shipment for the exhibit title 9.

Response to Paragraph 21:

Flador does not contend that it was an FMC-licensed OTI, NVOCC, or ocean freight forwarder. Rather, Flador relies on Clause 17 of the governing Bill of Lading and the parties' overall transportation arrangement as the contractual basis on which release of the third shipment was conditioned upon payment of the outstanding balance or provision of adequate security. The sums at issue were invoiced by Flador and were alleged by Flador to be due under that same commercial arrangement.

Respondent Flador admits in part that the third shipment was cleared through customs and remained in NTG's possession in the United States pending completion of the release process. Respondent further admits that NTG did not release the cargo. However, any nonrelease occurred in connection with Flador's express instruction that delivery was not to be completed unless and until the outstanding balance was paid or adequate security was provided pursuant to Clause 17 of the governing Bill of Lading. Respondent therefore denies that any wrongful maritime lien was asserted or that the detention was unlawful.

The allegation that Complainant had paid all amounts necessary for release is also denied. Complainant was in default on the debt of USD 22,745.69 arising from the second shipment. Moreover, the applicable seawaybill or Switch bill of lading contained contractual lien and retention rights, and those rights were invoked only after repeated written and verbal demands for payment went unanswered.

Flador notified Complainant by phone that the amounts paid for the third shipment, namely USD 11,541.69 and USD 7,600.00, had been applied against the overdue debt evidenced by Invoice No. 429 dated September 30, 2025 in the amount of USD 22,745.69.

In addition, Clause 17 of Bill of Lading No. HLCUIZ1PI42587AA issued for the third shipment grants the Carrier a lien not only for freight and general average, but also for all other sums owed to the Carrier under any other contract. As such, Flador repeatedly advised Complainant by telephone and email that it was acting within its contractual rights in conditioning release of the third shipment upon payment of the outstanding balance and/or provision of adequate security for the exhibit title 7.

Indeed, while the insurance process was still ongoing, Flador attempted to resolve the dispute. To that end, during a WhatsApp telephone conversation on 5 December 2025 lasting one hour and thirty two minutes, Flador's Company Manager, Mehmet Özer, informed Müfit Sarıkaya that the cargo held pursuant to lien rights would be released if USD 4,500 were deducted in respect of the machine reported damaged in the first shipment and the remaining balance were paid, or alternatively if security were provided for the balance outstanding. However, Complainant's representative, Müfit Sarıkaya, stated that no payment would be made unless the full amount of USD 8,500.00 allegedly arising from the first shipment was paid or credited by way of set off for the exhibit title 3.

Without admitting any liability, Flador further advised, in its email dated March 2, 2026 to the Complainant's representatives, Müfit Sarıkaya and Tayfun Alptekin, that, for purposes of an

amicable resolution, it was prepared to release the cargo upon setting off the damage amount claimed by the Complainant on December 5, 2025 against the overdue debt and payment of the remaining balance, even before completion of the insurance process.

Stated differently, Flador confirmed that it had accepted the Complainant's prior proposal. However, rather than stand by that proposal and resolve the matter, the Complainant responded as follows, merely to create the impression that it was pursuing amicable settlement efforts: "Our objective remains to resolve this matter in good faith and avoid further escalation. However, the continued illegal holding of the third shipment for 5 months has caused significant operational and commercial disruption for our company. In order to resolve this matter, we propose the following framework:

- Immediate release of the cargo from the third shipment
- Waiver of all storage and related charges associated with the shipment
- A settlement payment of USD 25,000 to partially compensate for the damages, legal costs, and business disruption caused by the extended detention of our Cargo. Upon completion of the above, we would be prepared to withdraw the FMC complaint and related claims."

Defendant states that, without admitting any liability and solely in order to assist the proceedings before the FMC and avoid unnecessary delay, Flador agreed to release and deliver to Complainant the third shipment being held pursuant to its lien rights, and, for that purpose, requested by email dated 9 March 2026 that Complainant provide the delivery address. Complainant provided the delivery address on 10 March 2026, after which Flador instructed NTG to proceed with delivery of the cargo. Nevertheless, although Complainant agreed to accept delivery of the shipment, it stated that it would continue to pursue its FMC complaint and related claims.

The governing Switch Bill of Lading (HLCUIZ1PI42587AA) defines the term "Merchant" broadly to include the shipper, consignee, holder of the switch bill of lading, receiver of the goods, owner of the goods, any person entitled to or claiming possession of the goods, and any person acting on behalf of any of the foregoing for the exhibit title 7.

Accordingly, the outstanding balance of USD 22,745.69 payable by Complainant falls within the scope of the contractual lien.

Complainant may not characterize the unpaid balance as "unrelated charges" for purposes of its Shipping Act claims. Respondents' decision to condition release of the cargo upon payment of the outstanding balance or the provision of reasonable security was contractually authorized and commercially reasonable and does not constitute an unjust or unreasonable practice under 46 U.S.C. § 41102(c).

Respondent acknowledge that *World Imports* was not a decision issued under the Shipping Act. However, that decision is persuasive in the present matter insofar as it recognises that parties may, through clear contractual language, create and preserve continuing lien and security rights over cargo for unpaid charges and expenses. Accordingly, the existence, validity, and scope of any such asserted lien or security right in this case should not be assessed solely by reference to the fact that certain amounts allegedly arose from prior shipments, but rather by reference to

the governing transport documents, invoices, tariff terms, and other binding contractual provisions between the parties.

Respondent advised, in its email dated November 27, 2025 sent to Complainant, that: “We contracted with you for the transportation of three shipments, but the amounts you sent do not cover the total outstanding balance. We signed a single contract with you for transportation in three lots. The amount we have received to date does not even cover the charges relating to the first two shipments. The goods would be released upon payment of the remaining balance” for the exhibit title 1.

Respondent, in its email dated December 1, 2025, attaching the balance statement submitted herewith, expressly notified Complainant in writing that the shipments were governed by Bill of Lading No. HLCUIZ1PI42587AA and that Clause 17 of that Bill of Lading granted the Carrier a contractual lien for all sums due from the Merchant for the exhibit title 1.

In a separate email sent the same day to Complainant’s counsel, Mr. W.J. Cook, attaching the balance statement and invoice, Respondent further advised that the cargo was being retained because Complainant had failed to pay the overdue amount of USD 22,745.69 arising from transportation and related charges incurred on behalf of Gator, and that Respondent was therefore contractually entitled to suspend release of the cargo pending payment. Respondent also explained that the applicable shipment term was EXW, not DDP, as previously stated by Respondent and subsequently accepted by Complainant, and that the three lots were not separate and unrelated transactions but formed part of a single overall transportation agreement. Respondent further advised that the authority relied upon by Complainant was inapplicable to the present matter because, as reflected in the attached balance statement, the amount of USD 22,745.69 remained due and unpaid under the parties’ agreement for the exhibit title 1.

Response to Paragraph 22:

Respondent denies the allegations in Paragraph 22 to the extent they suggest that the continued retention of the cargo, its transfer to storage, or the accumulation of related charges resulted from any unreasonable, unjust, coercive, retaliatory, or otherwise unlawful conduct. As explained above, after Complainant failed to pay the matured outstanding balance and failed to provide adequate security despite repeated written and verbal demands, Respondent Flador invoked its contractual lien and retention rights under Clause 17 of the governing Bill of Lading for the exhibit title 7.

Because Complainant did not cure its default, the cargo could not be released and had to be retained and handled accordingly. Any transfer, storage, warehouse, or related charges arose as a direct consequence of Complainant’s continued nonpayment and noncooperation, not from any improper purpose on the part of Respondents. Respondents further state that they repeatedly attempted to resolve the matter, including through communications concerning payment, insurance, and release procedures, but Complainant failed to discharge its matured obligations.

Accordingly, Respondents deny that the retention of the cargo or any related storage and handling measures constituted an unlawful practice or a violation of the Shipping Act.

Response to Paragraph 23:

Respondent Flador made all reasonable efforts to resolve this dispute. Despite those efforts, from 5 December 2025 to 5 March 2026, Complainant failed to respond to any of Flador's communications by telephone or email. As direct communication with Complainant could not be established, attempts to resolve the matter were also made through the exporter, Mac Bending

Complainant's failure to respond to communications made during the insurance adjustment process and to provide the documents requested by the insurer also delayed the assessment of the alleged loss for the exhibit title 1, 2 and 3.

Despite repeated warnings, Complainant failed to pay its matured debt. As a result, Respondent exercised its contractual lien and retention rights, including under Clause 17 of the applicable bill of lading, and transferred the cargo to a secure warehouse. Flador denies that the detention, storage, and related transfer charges were imposed unlawfully, unfairly, or unreasonably. Complainant was repeatedly advised that the costs arising from the exercise of lien rights, made necessary by its failure to pay or provide security, would be for its account.

In its email dated 27 November 2025, Flador informed Complainant that the parties had agreed to the transportation of three shipments, but that the payments made did not satisfy the total outstanding balance, and that the goods would be delivered upon payment of the remaining amount for the exhibit title 1.

In its email dated 1 December 2025, Flador attached the balance statement submitted with this pleading and expressly notified Complainant that the shipments were subject to Bill of Lading No. HLCUIZ1PI42587AA and that Clause 17 of that Bill of Lading granted the Carrier a contractual lien for all sums due from the Merchant. In a separate email sent the same day to Complainant's counsel, Mr. W.J. Cook, Flador attached the balance statement and invoice and explained that the cargo was being withheld because the past-due amount of USD 22,745.69 arising from freight and related charges incurred on Gator's behalf had not been paid, and that delivery could therefore be suspended contractually until payment was made, for the exhibit title 1.

Flador further stated that the applicable shipment term was EXW, not DDP, that the three shipments were not separate and unrelated transactions but parts of a single overarching transportation agreement, and that the authority relied upon by Complainant was inapplicable to the facts of this case. As reflected in the attached balance statement, the debt in the amount of USD 22,745.69 remains due and unpaid under the parties' agreement.

Even while the insurance process was ongoing, Flador attempted to resolve the dispute by informing Complainant that, if the outstanding balance remaining after deduction of USD

4,500 from the alleged damage amount relating to the machine reportedly damaged in the first shipment was paid, or if security was provided for the remaining debt, the cargo held pursuant to Flador's lien rights would be released. This was also conveyed by Flador's Manager, Mehmet Özer, during a WhatsApp call with Müfit Sarıkaya on 5 December 2025 lasting one hour and thirty-two minutes. In response, Complainant's representative, Müfit Sarıkaya, stated that no payment would be made unless the full alleged loss of USD 8,500 relating to the first shipment was paid or deducted by way of set-off, for the exhibit title 3.

Flador went further and, in order to assist the proceedings before the Commission and resolve the dispute amicably, notified Complainant by email dated 2 March 2026 that, solely for settlement purposes and without waiving any rights or defences, it was prepared to offset against its past-due receivable the damage amount requested by Complainant's representative on 5 December 2025 before completion of the insurance process and, upon payment, to release and deliver the cargo held pursuant to its lien rights. However, Complainant persisted in its intransigent position and, in exchange for withdrawing the FMC Complaint, demanded the immediate release of the cargo relating to the third shipment, a waiver of all storage and related charges, and a settlement payment in the amount of USD 25,000 for alleged damages, legal expenses, and loss of business.

Finally, without admitting any liability and solely to assist the proceedings before the FMC and avoid unnecessary delay, Flador agreed to release and deliver the third shipment held pursuant to its lien rights and, by email dated 9 March 2026, requested the delivery address. Complainant provided the delivery address on 10 March 2026, whereupon Flador gave NTG the necessary instructions to arrange delivery. Notwithstanding its agreement to accept the shipment, Complainant stated that it would continue to pursue its FMC complaint and related claims for the exhibit title 4.

Accordingly, all measures taken by Respondent arose solely from Complainant's default and from the exercise of contractual rights under the applicable transport documents. Flador therefore denies that it retaliated against Complainant or acted unlawfully in response to any protected activity.

Response to Paragraph 24:

Flador denies the allegation that Respondents improperly hardened their position or took a false position.

Flador made written demand for payment of the unpaid balance of USD 22,745.69 and for the charges for storage and transfer to warehouse that became necessary because lien rights had to be exercised due to nonpayment.

Flador denies the allegation that the charges demanded were baseless or improper, or that Respondents unlawfully threatened to sell Complainant's equipment.

Any reference by Flador to a possible disposition or sale of the cargo was made only after prolonged nonpayment and repeated unanswered notices, and solely for the purpose of reserving rights under the Switch BL (Switch Bill of Lading) and applicable law.

After Complainant was notified of the transportation and storage charges caused by its breach of contract, Complainant accepted Respondent's request for a discount. Accordingly, as of the date this pleading was prepared, Gator's total invoice-based debt was USD 29,245.69. This amount consisted of USD 22,745.69 under Invoice No. 429 for import customs duties, USD 4,780 under Invoice No. US00154076 for the transfer of the machine to storage in order to exercise lien rights, USD 1,000 under Invoice No. US00158757 for warehouse rent, and USD 800 under Invoice No. US0016026 for warehouse charges for the exhibit title 10.

For the foregoing reasons, the transfer and related warehouse charges were the direct and foreseeable consequence of Complainant's default.

Any possible sale of the cargo under the Switch BL (Switch Bill of Lading) would arise only as a contractual and legal remedy in the event the matured debt remained unpaid.

V. VIOLATIONS

COUNT I: ALLEGED VIOLATION OF 46 U.S.C. § 41102(c)

Response to Paragraph 25:

Flador incorporates by reference its responses to Paragraphs 1 through 24 as though fully set forth herein.

The email communications from Flador confirm that the third shipment was held pursuant to Switch BL (Switch Bill of Lading) Clause 17 of the applicable bill of lading until the outstanding balance was paid.

Flador's exercise of its contractual lien and retention rights in response to Complainant's admitted nonpayment was commercially reasonable and does not constitute an unjust or unreasonable practice under 46 U.S.C. § 41102(c).

Flador acted in accordance with the governing Switch BL (Switch Bill of Lading), including Clause 17, which grants the Carrier a contractual lien over the goods and related documents not only for freight and general average, but also for all other sums owed by the Merchant to the Carrier under any other contract.

Moreover, because Complainant demanded release of the cargo and acted as both consignee and shipper, Complainant qualifies as a "Merchant" under the bill of lading and is therefore subject to the contractual lien provisions. Respondents' retention of the cargo pending payment or adequate security was thus commercially reasonable and consistent with the governing transport documents.

Accordingly, Respondents' withholding of the shipment until the outstanding balance was paid was contractually authorized and commercially reasonable.

Response to Paragraph 26:

Flador denies the allegation that it failed to establish, observe, or enforce just and reasonable practices.

Complainant's conclusory allegations of retaliation are denied. The conduct at issue arose not from any protected activity, but from nonpayment and the enforcement of contractual rights.

Flador denies the allegation that the cargo in the third shipment was held under an unlawful lien or that unlawful detention charges were imposed.

Respondents acted pursuant to the contractual lien and retention provisions contained in the transport documents. The storage and transfer charges were the natural and foreseeable consequence of Complainant's default, and Complainant had been informed of that consequence multiple times beforehand.

Clause 17 of the switch bill of lading applies to all sums payable by the "Merchant," a term defined to include the consignee and any person entitled to or claiming ownership or possession of the goods.

For that reason, Complainant was subject to the contractual lien, and Respondents' retention of the cargo pending payment or adequate security was commercially reasonable.

Complainant effectively admits that, while demanding delivery of the third shipment, it knowingly failed to pay the outstanding debt of USD 22,745.69.

Even if a dispute existed regarding the damage allegedly sustained by the cargo, Complainant's unilateral refusal to pay an invoiced and overdue debt does not transform Respondents' decision to condition release of the cargo upon payment or security into an unjust or unreasonable practice under 46 U.S.C. § 41102(c).

The Complaint therefore fails to allege any concrete facts showing that Respondents' conduct was anything other than a commercially reasonable response to Complainant's admitted payment default.

To the extent Complainant challenges Respondents' right to condition release on payment or adequate security, Flador expressly relies on the contractual lien, retention, and remedy provisions of the applicable bill of lading, including Clause 17, which is part of the governing transport contract and expressly secures the sums owed by the Merchant to the Carrier.

COUNT II: ALLEGED VIOLATION OF 46 U.S.C. § 41102(d)

Response to Paragraph 27:

Flador incorporates by reference its responses to Paragraphs 1 through 24 as though fully set forth herein.

Flador repeatedly informed Complainant that the cargo would be released immediately upon payment of the outstanding invoice debt. Those communications do not show coercion or refusal to deal; they show conditional release based on nonpayment.

Under these circumstances, the exercise of contractual lien rights does not constitute an unjust or unreasonable practice within the meaning of 46 U.S.C. § 41102(d).

Response to Paragraph 28:

Flador denies that it engaged in any retaliatory conduct as alleged.

The Complaint attempts to characterize Respondents' conduct as coercive withholding or refusal to deal. In reality, Flador repeatedly requested payment of the outstanding balance or provision of reasonable security, informed Complainant of the consequences of continued

nonpayment, and offered alternative solutions for release of the cargo. Complainant, however, refused to cure its payment default, failed to provide security, and demanded unconditional release of the cargo without payment.

Flador exercised lien rights over the cargo pursuant to the terms of the bill of lading. The storage and safekeeping measures were the consequence of nonpayment or the failure to provide security for the debt, and thus reflected the exercise of Flador's contractual rights.

Complainant's retaliation claim is legally unsupported because the Complaint fails to allege the required causal link between any supposed protected activity and Respondents' conduct.

COUNT III: ALLEGED VIOLATION OF 46 U.S.C. § 41104(a)(10) AND (14) AND 46 C.F.R. § 545.5

Response to Paragraph 29:

Flador incorporates by reference its responses to Paragraphs 1 through 24 as though fully set forth herein.

Response to Paragraph 30:

Flador denies the allegations set forth in Count III. The charges at issue were connected to the same commercial relationship and the same shipments and were secured by the contractual lien provisions in the relevant bills of lading. Those provisions are valid so long as they are not contrary to public policy.

Count III therefore does not state a violation within the Commission's jurisdiction as alleged.

Respondents did not engage in unjust or unreasonable practices, refuse to deal, or act coercively. Nor were any detention or storage charges imposed solely to force payment of unrelated charges. The charges at issue were related to the same commercial relationship and shipments and were secured by the contractual lien provisions of the relevant shipment documents.

To the extent the Complaint relies on statutory or regulatory provisions that do not apply to Respondents as alleged, Flador denies those allegations as well and denies that Count III states any violation within the Commission's jurisdiction.

VI. AFFIRMATIVE DEFENSES

Response to Paragraph 31:

Flador denies the allegation that Complainant has suffered any legally cognisable harm as a direct and proximate result of any act or omission of Flador, let alone any Shipping Act violation.

Flador further denies that Complainant's alleged detention charges, storage fees, disruption of commercial relationships, business reputation damages, attorneys' fees, or additional operational costs were caused by Flador. To the contrary, any such charges or alleged losses arose from Complainant's own nonpayment, refusal to provide adequate security, and failure to cooperate in the adjustment and resolution process.

Without assuming any burden of proof that would otherwise rest with Complainant, and without waiving the denials set forth above, Flador asserts the following affirmative defenses:

First Affirmative Defense (Failure to State a Claim)

The Complaint fails to state a claim upon which relief may be granted under the Shipping Act or the Commission's rules.

Second Affirmative Defense (No Shipping Act Violation and Commercial Reasonableness)

Flador's conduct was commercially reasonable in nature. Respondents' actions were consistent with the express terms of the governing bill of lading. Flador did not engage in any unjust, unreasonable, or unlawful practice within the meaning of 46 U.S.C. §§ 41102(c) or (d) or 41104(a)(10) or (14).

Third Affirmative Defense (Contractual Lien and Right of Retention)

The applicable Bill of Lading expressly grants the Carrier, its servants, agents, and subcontractors a contractual lien on the goods and related documents for freight, general average, and all other sums owed by the Merchant to the Carrier under any other contract. The bill of lading further authorizes the Carrier to exercise the lien at any time and place, recover collection costs and legal expenses, and, where appropriate, sell the goods by public auction or private sale. Respondents' custody, retention, and release decisions were taken pursuant to those contractual rights and remedies. See Clause 17 of the bill of lading for the exhibit title 8.

Fourth Affirmative Defense (Complainant's Default and Prior Material Breach)

Complainant failed to pay invoiced amounts when due under the parties' agreement, including the outstanding sum of USD 22,745.69 identified in this Answer. Complainant's breach of its payment obligations bars or limits any claim for relief to the extent the complained of circumstances were caused by Complainant's own default.

Fifth Affirmative Defense (Application and Allocation of Payments)

To the extent Complainant made partial payments, Respondents were entitled to apply those payments to outstanding balances in accordance with the parties' agreement, their course of dealing, and the applicable terms and conditions.

Sixth Affirmative Defense (Lack of Causation and Failure to Mitigate)

The alleged damages were not caused by Flador. Complainant failed to take reasonable steps to avoid or mitigate its alleged damages and failed to cooperate in the claims and documentation process. Any alleged damages were therefore caused or increased by Complainant's own conduct.

Seventh Affirmative Defense (No Retaliation)

Flador did not retaliate against Complainant for any protected activity. All steps taken were based on nonpayment, the failure to provide adequate security, and the exercise of contractual rights.

Eighth Affirmative Defense (Fault of Third Parties)

Any alleged loss, damage, delay, or increased cost was caused in whole or in part by the acts or omissions of third parties, including Freightlead LLC and/or its contractors and Accelerated CFS (Orlando, Florida) and/or its contractors during inland handling, CFS operations, storage, and/or domestic transportation. Respondents therefore are not liable for such damages, if any.

Ninth Affirmative Defense (Jurisdictional and Threshold Defenses Reserved)

Flador reserves, and does not waive, all defenses relating to subject matter jurisdiction, personal jurisdiction, service, standing, venue, and all other threshold matters, as permitted by the Commission's rules, including the right to amend its defenses.

Tenth Affirmative Defense (Private Commercial Payment Dispute)

This matter is not a Shipping Act violation but a private commercial payment default dispute.

Eleventh Affirmative Defense (Complainant Caused the Result)

The circumstances of which Complainant complains were the direct result of Complainant's refusal to pay the outstanding charges or provide sufficient security. The dispute arises from a commercial payment default, not from a violation of the Shipping Act. The Complaint attempts to recast a private contractual dispute as a Shipping Act claim.

VII. DAMAGES REQUESTED

Response to Paragraph 32:

Complainant seeks broad categories of damages, including lost profits and injury to commercial reputation. The Complaint, however, does not plead concrete facts showing measurable actual damages, causation, or reasonable mitigation efforts.

Allegations such as "lost profits," "damage to business relationships," and "reputational harm" are merely abstract assertions in the absence of transaction records, valuation evidence, and proof of mitigation. Complainant's damages claims should therefore be denied.

With respect to the alleged equipment loss, although not legally required to do so before completion of the insurance process, Flador was willing to allow an USD 8,500 setoff toward a settlement payment for the reported damage.

Any claimed loss of commercial reputation or lost sales profit is unproven. Even assuming, solely for argument's sake, that such losses existed, Flador bears no legal responsibility because the reported damage occurred without fault on Flador's part.

Likewise, Flador and NTG did not cause the detention, storage losses, or operational costs claimed by Complainant. Those items were caused by Complainant itself.

VIII. PRAYER FOR RELIEF

Response to Paragraph 33:

The events are sufficiently clear from this Answer, and no further investigation is warranted. Respondents exercised a contractual general lien under the bill of lading because Complainant refused to pay an overdue invoice or provide adequate security. This is a commercial payment dispute, not a Shipping Act violation.

- a) Respondent denies that any investigation is necessary under 46 U.S.C. § 41301(c), because the allegations of the Complaint are denied and do not establish any violation of the Shipping Act.
- b) Respondent denies that they violated the Shipping Act, denies that they engaged in any unlawful or unreasonable practice, and denies that any cease and desist order is warranted.
- c) Respondent denies that Complainant is entitled to an order compelling release of the cargo. The charges at issue arose from the same commercial relationship and were secured by the contractual lien provisions of the governing transport documents. Respondents further state that they acted in accordance with law and with their contractual rights.
- d) Respondent denies that Complainant is entitled to damages, interest, attorneys' fees, or any other monetary relief under 46 U.S.C. § 41305 or any other legal theory, because Respondents committed no unlawful act and Complainant has identified no basis for such relief.
- e) Respondent denies that Complainant is entitled to any other or further relief, because the Complaint fails to state a claim warranting relief.

Accordingly, Respondent respectfully requests that the Commission dismiss the Complaint in its entirety, deny all relief requested by Complainant, and grant such other and further relief as the Commission deems just and proper.

IX. REQUEST FOR HEARING

Respondent denies that an oral hearing is necessary and does not request a hearing because, in light of the clarified facts, a hearing would not affect the outcome of the matter.

VERIFICATION

I, Özgür Demirtaş, as Company Manager of Flador Global, declare under penalty of perjury under the laws of the United States of America that the foregoing statements are true and correct to the best of my knowledge, information, and belief.

Dated: March 13, 2026

Undersigned authorized representative

Signature:  _____

Name: Özgür Demirtaş

Title: Company Manager

Company: Flador Global Uluslararası Taşımacılık Loj. Dış Tic. Ltd. Şti.